

Bylaws
of the
American Ramallah
Federation
Educational and Charitable
FUND

BY-LAWS OF THE AMERICAN RAMALLAH FEDERATION EDUCATIONAL AND CHARITABLE FUND

ARTICLE 1 – NAME, ADDRESS & STATUS

Section 1.

The name of this organization shall be the American Ramallah Federation Educational and Charitable Fund (“ARFECF”).

Section 2.

The ARFECF headquarters shall be at 27484 Ann Arbor Trail, Westland, MI 48185 or such other location as determined by the Board of Directors of ARFECF.

Section 3.

The ARFECF is a non-profit corporation chartered in the State of Michigan and recognized by the IRS.

ARTICLE II – PURPOSE AND MISSION

The purpose and mission of the ARFECF shall be:

We are a non-profit charitable and educational organization whose objective is to provide financial aid for the education and training of needy and deserving students, to contribute to educational institutions and civic organizations in furtherance of educational causes, to support cultural activities and events, and to provide for charitable and relief projects.

Our mission is to be accomplished as provided for within the By-Laws.

ARTICLE III – AFFILIATION

Section 1.

The ARFECF may affiliate with other organizations as provided for within the By-Laws or by its Board of Directors (the “Board”).

Section 2.

The Hathihe Ramallah Magazine (the “Magazine”) is recognized as the official media source for communication among the members of the ARFECF.

ARTICLE IV – GOVERNMENT

Section 1

The governing body of the ARFECF shall be its Board of Directors (the “Board”) as defined by these By-Laws. The requirements for service as a Board member are provided for within the By-Laws.

Section 2.

The Board shall seek out and retain the services of an Executive Director, whose duties and terms of employment are provided for within the By-Laws. The Executive Director may also be the Executive Director of the American Federation of Ramallah, Palestine (“AFRP”).

ARTICLE V – ADMINISTRATION

Section 1.

The ARFECF shall be administered pursuant to its By-Laws. The preference for the day-to-day management of the ARFECF shall be by the AFRP and its staff, for which an annual fee shall be paid as agreed to by the Board and AFRP.

Section 2.

All Regular Members in good standing of AFRP and all Associate Members of AFRP shall also be Regular Members and Associate Members, respectively, of ARFECF.

Section 3.

The Board shall have the authority to manage, supervise and control all business and affairs of the ARFECF. The Board shall also have the authority to enact any Rules and Regulations it deems proper for implementing the provisions of the By-Laws and in regulating the affairs and business of the ARFECF. Such Rules and Regulations shall require approval by a two-thirds (2/3) affirmative vote of all members of the Board of Directors.

Section 4.

The Board of Directors shall consist of the following voting members: fifteen (15) members, including the AFRP President, the AFRP Deputy President, the Chairman of the Scholarship Fund Committee, the Chairman of the Endowment Fund Committee, the Chairman of the Investment Committee, the Chairman of the Audit Committee, the Scholarship Fund Committee Secretary, two members of the ARFECF Scholarship Fund Committee chosen by its Chairman, two members of the ARFECF Endowment Fund Committee chosen by its Chairman, one member of the ARFECF Investment Committee chosen by its Chairman, three at large members to be chosen by the President. The Board of Directors shall elect its officers for a one (1) year term, being a President, Vice President, and Treasurer, and the Board may elect such other officers as it shall determine to be required to fulfill its functions. The Board Secretary shall be the Scholarship Fund Committee Secretary. The AFRP President and Deputy President shall not be elected to any office of ARFECF. As the first Board Member, the AFRP President shall appoint the Chairman and initial members of all Committees. Thereafter, the ARFECF President shall appoint the Chairman of each Committee and the Board shall appoint the other members of all Committees.

The Board of Directors shall also consist of the following non-voting members: the Executive Director.

Section 5.

To be a member of the Board of Directors, each member must be a Regular Member in Good Standing, as dictated in the ARFP By Laws, and that member shall be deemed an ambassador of the ARFECF in his or her community and shall cooperate with the ARFECF in all matters and projects by promoting the ARFECF interests, encouraging ARFECF membership, implementing ARFECF decisions, and attending to whatever is requested of them.

Section 6.

Whenever possible, all members of the Board shall be polled by the Executive Assistant or by a designated member of the Board on all major issues concerning the ARFECF. Further, any Board member shall have the right to submit suggestions or recommendations to the Board and request that polling of all Board members be made, only if such request is approved by at least (5) five members of the Board. Board members who do not reply to the poll within the time prescribed shall be considered to abstain on the issue.

Section 7.

7.1 President

The President shall be the principal Executive Officer of the ARFECF. He/she shall preside at all general membership meetings and as Chairman of the Board of Directors. In general, he/she shall perform all the duties incident to the office of the President, including the establishment of committees and such other duties as may be prescribed by the By-Laws, or the Board of Directors, and not otherwise prescribed by the By-Laws. The President may run for a second consecutive term of one year. No President may serve more than two consecutive terms. The President is an ex officio member of all committees.

Section 7.2.

In order to be elected President, the candidate must be a duly elected Vice President and have previously served in that capacity.

Section 7.3

The President's maximum authorization limit for operating expenditures not included in the annual budget shall not exceed \$2,000, and s/he will be able to exercise this privilege a maximum of twice during the term of office. Any expenditure in excess of \$2,000 shall only be authorized by the majority of the Board. Any expenditure in excess of \$10,000 shall only be authorized in the approved budget at the Annual General Meeting.

Section 8.

8.1 The Vice President

In the absence of the President, or in the event of his/her inability or refusal to act, the Vice President shall perform the duties of the President. The Vice President shall perform such other duties as from time to time may be assigned to him/her by the President or these By-Laws. Upon termination of the

term of office of the President, the Vice President shall automatically and without further notice succeed to the office of the President to fulfill the remaining term and shall assume his/her regular term at the next Annual General Meeting. The Board of Directors shall decide whether the President is unable or has refused to act.

Section 9.

9.1- Scholarship Fund Committee Secretary

The Scholarship Fund Committee Secretary shall be elected by the Scholarship Fund Committee and shall perform all duties incident to the position of Secretary, as well as any other duties assigned to him/her by the President or the Board.

Section 10.

10.1- Treasurer

The Treasurer shall keep records of the funds of the ARFECF and its committees as well as all other duties and responsibilities of distributing approved grants and scholarships, and shall be responsible for all general ARFECF funds; receive and give receipt for monies due and payable to the ARFECF from any source whatever and endorse any checks drawn by the ARFECF, and deposit all such monies in the name of the ARFECF in such banks as the Board may select with two (2) weeks from its receipt; to submit reports on the ARFECF treasury when requested by the Board. In general, the Treasurer shall perform all duties incident to the position of Treasurer and such duties as from time to time may be assigned to him/her by the President or the Board. The Treasurer's signature on all checks and other payments shall be countersigned by the President, Vice President or other person designated by the Board. The Treasurer shall be appointed by the Board.

Section 11

11.1-Executive Director

The Executive Director shall perform the duties as set forth within the terms and conditions of employment as defined by the Board. The Executive Director may also be serving as the Executive Director of the AFRP.

Section 11.2

The Executive Director should be a college graduate, with experience in non-profit administration and management. This position will require someone with strong organizational skills in order to effectuate the following, as an at-will employee of the ARFECF: Implementing and enforcing ARFECF policy as directed by the Board; Work in close cooperation with the President and Board; Oversee program progress, and insure all programs are adhering to

directives as
set in the By-Laws
established
and
lines as
able; Oversee

Replace with

o ARFECF policy and directives as laid out in the By-Laws and established policies and guidelines as applicable; Oversee the day to day operations of the ARFECF appointed committees; Promote and assist with any ARFECF projects; and, Assist and support the other Committees in implementing corporate, foundation and grant funding campaigns.

Section 11.3

The Executive Director shall also: Have access to all ARFECF records and oversee the maintenance and safeguarding of all records; Coordinate all official approved ARFECF communications that will be disseminated from the ARFECF office; Work to implement an online newsletter (Published online biweekly) to update ARFECF members of activities and ARFECF news; Institute a Public Relations campaign to other Arab American Organizations as well as the General Public; Engage in marketing and advertising on the behalf of the ARFECF; and, Be responsible for coordinating all media activities and, along with the Board, will decide who will represent the ARFECF with respect to any and all media interaction.

Section 11.4

The Executive Director, after selection, interview and recommendation by the five (5) member Board Selection Committee (appointed by the President), will be hired by the Board and shall serve as an at-will employee of the ARFECF. Nothing contained within the By-Laws, policies or the Employment Terms of the Executive Director shall create any expectation of employment beyond that of an at-will employee. The other terms and conditions of employment will be developed the Board Selection Committee and reviewed and approved by the Board.

Section 11.5

The Executive Director shall execute the necessary employment documents immediately upon being hired and shall abide by the terms conditions contained within the employment documents.

Section 11.6

On an annual basis, not more than 90 days prior to the Annual Meeting, the President, along with the Board, shall meet in order to evaluate the performance of the Executive Director, and at the Annual Meeting the President shall make salary recommendations to the Board for approval.

Section 12.

12.1- Legal Advisor

The Legal Advisor shall be the Chief Legal Officer of the ARFECF and shall be available at all times for legal consultation to the President, the Executive Director, the Board of Directors, and the General Assembly at the Annual Convention. The Legal Advisor may be elected from any community and shall be a licensed attorney in good standing.

ARTICLE VI – COMMITTEES

Section 6.1.

Standing Committees shall be: the Endowment Fund Committee; the Investment Committee; the Audit Committee; and the Scholarship Fund Committee. These Standing Committees, and other committees established by the Board, shall operate pursuant to the By-Laws and policies of each Committee as adopted and approved by the Board.

Section 6.2.

Other Committees shall be created and operate as provided for within the By-Laws.

6.3- The Endowment Fund

Section 6.3.1.

The purposes of the Endowment Fund (“EFund”) are as set forth in the Endowment Fund Policy Statement and Guidelines established and as amended by the Board from time to time, and including (i) to pay fees and costs of administering the ARFECF, and (ii) to fund the charitable, cultural, and civic pursuits of the ARFECF, in order to advance the goal of preserving the Ramallah heritage for those descendants of Ramallah ancestors living in the United States. The EFund shall be used in part to meet the charitable, cultural and civic purposes of the ARFECF (examples of such pursuits are Ramallah Charitable Institutions, Project Hope, Leadership Program, and Internships in Washington).

Endowment Fund Administration

Section 6.3.2.

The EFund shall be administered by the EFund Committee. The investments of the EFund shall be supervised by the Investment Committee. The EFund Committee may make recommendations to the Investment Committee as to the manner of investing the EFund money.

Limitation on Endowment Fund Expenditures

Section 6.3.3.

The annual expenditures from the EFund shall be limited in each year only to five (5%) percent of all assets and income derived from the investment of the corpus of the EFund in that year.

Authorization of Endowment Fund Expenditures

Section 6.3.4.

The only body that can authorize annual expenditures from the EFund within the limits stated in aforementioned Section 6.3.3 is the EFund Committee.

Section 6.3.5.

Members of the EFund Committee may serve for up to two (2) consecutive terms of three (3) years each and until their respective successors are appointed. No Chairman of the Committee shall serve more than two (2) consecutive one year terms as Chairman.

Section 6.3.6.

All amendments to the Policies, rules and regulations of the EFund Committee must be approved by 2/3 of the voting members of the Board of Directors.

Section 6.3.7.

The EFund Committee shall submit a full report at the Convention and furnish to the Executive Director of ARFECF any information upon request.

Section 6.3.8.

All funds that are now in the name of the EFund Fund and not earmarked for specific purpose shall continue to be in the EFund and used for purposes of that Fund only and shall not be diverted for any other fund or be used for any other purposes other than the purposes for which it was created.

6.4- Scholarship Fund

Section 6.4.1.

The purposes of the Scholarship Fund are as set forth in the Scholarship Fund Policy Statement and Guidelines established and as amended by the Board from time to time, and including: (i) to select and award scholarships for the education and training of students who give evidence of promise of high achievement and who have need of such aid, (ii) to aid and contribute to educational institutions in furtherance of educational causes, and (iii) to pay fees and costs of administering the ARFECF.

Scholarship Fund Administration

Section 6.4.2.

The Scholarship Fund shall be administered by the Scholarship Fund Committee. The investments of the Scholarship Fund shall be supervised by the Investment Committee. The Scholarship Fund Committee may make recommendations to the Investment Committee as to the manner of investing the Scholarship Fund money.

Limitation on Scholarship Fund Expenditures

Section 6.4.3.

The annual expenditures from the Scholarship Fund shall be limited in each year only to five (5%) percent of all assets and income derived from the investment of the corpus of the Scholarship Fund in that year.

Authorization of Scholarship Fund Expenditures

Section 6.4.4.

The only body that can authorize annual expenditures from the Scholarship Fund within the limits stated in aforementioned Section 6.4.3 is the Scholarship Fund Committee.

Scholarship Fund Committee

Section 6.4.5.

Members of the Scholarship Fund Committee may serve for up to two (2) consecutive terms of three (3) years each and until their respective successors are appointed. No Chairman of the Committee shall serve more than two (2) consecutive one year terms as Chairman.

Section 6.4.6.

All amendments to the Policies, rules and regulations of the Scholarship Committee must be approved by 2/3 of the voting members of the Board of Directors.

Section 6.4.7.

The Scholarship Committee shall submit a full report at the Convention and furnish to the Executive Director of ARFECF any information upon request.

Section 6.4.8.

All funds that are now in the name of the Scholarship Fund and not earmarked for specific purpose shall continue to be in the Scholarship Fund and used for purposes of that Fund only and shall not be diverted for any other fund or be used for any other purposes other than the purposes for which it was created.

Section 6.5.1.

All contributions shall be made payable to the American Ramallah Federation Education and Charitable Fund (ARFECF). Each contributor may designate his/her contribution to the fund he/she desires within provided guidelines. In the process of soliciting funds, the persons or institutions approached or contacted shall be advised of the necessity to designate the fund to which they are contributing. If any contribution is not designated by the contributor for any specific fund, the Board of Directors may in its discretion allocate it to one of the funds based upon the circumstances under which the contribution is being made.

6.6- Other Committees

Section 6.6.1.

The Board of Directors may create any other committees and establish and amend the policies and guidelines of such committees in order to further the goals and purposes of the ARFECF. No Chairman of any Committee shall serve more than two (2) consecutive one year terms as Chairman.

ARTICLE VII – MEETINGS

Section 1.

The Annual General Meeting and the Mid-Year Meeting shall be held once a year in cooperation with the Annual General Meeting and Mid-Year Meeting of the AFRP.

Section 2.

The Board shall meet at least six (6) times each year as provided for within the By-Laws.

Section 3.

Each Standing Committee shall meet monthly and as called for by the Chairman of the Board as provided for within the By-Laws.

Section 4.

Roberts Rules of Order revised, shall govern the proceedings of all regular or special meetings of the ARFECF and its constituent parts, except as provided in the By-Laws. All members of committees and of the Board may also attend meetings by electronic means as available.

ARTICLE VIII – DISSOLUTION

Section 1. Upon dissolution of the ARFECF, all assets shall be disposed of as provided for within the By-Laws, the Articles of Incorporation and by law. Upon the dissolution of the organization, assets shall be distributed for one or more exempt purposes within the meaning of section 501(c)(3) of the Internal Revenue Code, or corresponding section of any future federal tax code, or shall be distributed to the federal government, or to a state or local government, for a public purpose. Any such assets not disposed of shall be disposed of by the State Court of the county in which the principal office of the organization is then located, exclusively for such purposes or to such organization or organizations, as said Court shall determine, which are organized and operated exclusively for such purposes.

ARTICLE IX – AMENDMENT

Section 1.

These By-Laws may be repealed or amended upon an affirmative two-thirds (2/3) membership vote at the Annual General Meeting as provided for within the By-Laws.

Section 2.

In order for a proposed amendment to be voted upon, not less than 60 days prior to the Annual General Meeting, notice of the proposed amendment shall be published in the Magazine and placed on the official web site for the ARFECF, or mailed to all members in good standing.